

BUTLER, III VS. SHOEMAKER
CASE NUMBER: 25CV-0208353

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 30, 2026 to Plaintiff John Butler III and counsel, Law Office of Natalie R. Ludwig for failure to timely serve Defendant as required by CRC 3.110(b). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on August 4, 2025. While a Proof of Service of Summons has not been filed, the Court notes that Plaintiff has obtained an Order to serve by publication. The Order to Show Cause is **DISCHARGED**. A future hearing date will be addressed at 9:00 a.m. on the Resolution Review Calendar.

CARLS VS. MCCARTY, ET AL.
CASE NUMBER: 23CV-0203298

Tentative Ruling on Petition to Approve Minor’s Compromise: This Petition for Approval of Compromise of Claim for Minor is for a settlement of minor Jaydyn Carls’ claims from a dog bite incident on June 4, 2022. The Petition was filed by the minor’s parent, Rena Grigalba-Carls (incorrectly listed in the Petition as Rena-Grigalba Carls), who was appointed as the minor’s Guardian ad Litem on October 5, 2023. The matter was originally calendared for hearing on June 8, 2026. Due to several defects, the Court continued the hearing to August 10, 2026 and ordered that Petitioner correct the issues by filing an Amended Petition no later than July 27, 2026. The Court further ordered that if Petitioner could not comply with the deadline, a status statement must be filed by July 27, 2026 informing the Court of the status of any outstanding issues, the progress made for each, and the plan/timeline for filing the Amended Petition. Nothing was filed prior to the August 10, 2026 hearing. At the hearing on August 10, 2026, the Court granted another continuance to today and ordered Plaintiff to submit an Amended Petition no later than August 31, 2026. An Amended Petition has not been filed.

As stated on June 8, 2026 and again on August 10, 2026, California Rule of Court, Rule 7.950 states that a petition for court approval of a minor’s compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition lacks necessary information/evidence and the requested manner of distribution of the net settlement is illegal. The following issues will need to be addressed before the Court will consider granting the Petition.

- Additional information regarding the injury is required. This includes pictures and medical records that show the significance of the initial injury and the scarring that remains. Evidence regarding any future scar revision or surgeries that may be required and any mental health treatment the minor may seek to address the ongoing emotional distress must be provided.
- Attachment 10.c. is missing. The Court requests information for how the settlement is being funded (insurance proceeds or private payment). The Court also requires information regarding the policy limits for available insurance policies and the financial situation of Defendant.
- Item 12 was left completely blank despite the minor receiving medical treatment on at least two occasions. No information has been provided for any medical expenses that were paid and by whom. Item 12 must be completed and medical bills must be attached. Petitioner is required to determine if any medical expenses were paid by Medi-Cal and provide notice of the claim to the Director of Health Care Services as noted in Item 12.b.4.(a) or comply with Item 12.b.4.(b).
- Based on the attorney fee request in Item 13, counsel is requesting 40% of the gross settlement. Attachment 13.a. was not included. Counsel is ordered to review and comply with CRC 7.951. The written attorney fee agreement was not included as Attachment 17.a. Both are required.
- In Item 18.b.(5), Petitioner requests that the \$90,000 net settlement be paid or delivered to the minor’s parent, without bond. This option is only available if the value of the minor’s estate, including the money

to be delivered, is \$5,000 or less. \$90,000 far exceeds that limit, therefore, the proposed plan is illegal. Petitioner will need to determine a different plan for the net proceeds. Petitioner is ordered to carefully review Item 18 along with the relevant portions of the Probate Code and California Rules of Court in order to determine which plan is in the best interest of the minor. The most common methods are funding a blocked account or purchasing an annuity. If the new plan is to fund a blocked account, Petitioner must provide a proposed Order to Deposit Funds in Blocked Account (Form MC-355) and Attachment 18.b.(2) must be attached to the Amended Petition. If the new plan is to purchase an annuity, Petitioner will need to provide the purchase agreement for the annuity that includes all payments to be made over the life of the annuity as Attachment 18.b.(3). Petitioner is reminded that regardless of the plan selected, the Court will require proof that the settlement funded and net proceeds were distributed per the Order Approving Compromise.

- Petitioner did not provide a proposed Order Approving Compromise (Judicial Council Form MC-351) which is a mandatory form.
- No Proof of Service was filed indicating that Defendant was served. Service of the Petition on all parties is necessary.

Due to the extensive issues with the Petition, Petitioner will need to file an Amended Petition that includes all necessary evidence. Time is of the essence as the settlement cannot fund and the minor will not have the ability to receive interest on the settlement until funded.

Additionally, the Court notes that at the last hearing on August 10, 2026, Counsel informed the Court that the Guardian Ad Litem was working on getting an annuity. Because the purchase of annuity is dependent on the net settlement amount, the Court raises the additional issue of the attorney's fee request being higher than average. Counsel requests 40%, which the Court will not authorize in a minor's compromise case that did not go to trial. The Court does not intend to authorize attorney's fees in any amount in excess of 25% and refers Counsel to CRC 7.955. The Court expects that Counsel will provide the necessary declaration and justify any attorney's fee requested when filing the Amended Petition.

An appearance by counsel for Petitioner is necessary on today's calendar. Failing to appear will result in the issuance of an Order to Show Cause Re: Monetary Sanctions.

FALL RIVER VALLEY VOLUNTEER FIRE DEPARTMENT, ET AL. VS. FALL RIVER VALLEY FIRE PROTECTION DISTRICT, ET AL.

CASE NUMBER: 24CV-0206286

Tentative Ruling on Demurrer: Defendants Fall River Valley Fire Protection District, Rick Gomes, and Jody Morgan demur to the First Amended Complaint (FAC) filed by Plaintiffs Fall River Valley Volunteer Fire Protection Department and McArthur Volunteer Fire Department, Inc. on July 6, 2026. Plaintiffs oppose the Demurrer.

Meet and Confer. Defendants have provided evidence of sufficient effort to meet and confer prior to filing the Demurrer.

Request for Judicial Notice. Defendants request the Court take judicial notice of Shasta Local Agency Formation Commission Resolution 2020-09 and Fall River Valley Volunteer Fire Department's California Secretary of State Corporation filing dated March 18, 2022. Plaintiffs did not object. The requests are granted pursuant to Evid. Code §§ 452(b), (c) and (h) and 453.

Merits of Motion. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e).